

The Mines (Amendment) Act, 1983

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[Act 42 of 1983](#)

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[An Act further to amend the Mines Act, 1952.](#)

[BE it enacted by Parliament in the Thirty-fourth Year of the Republic of India as follows:?](#)

[1.](#)

[Short title and commencement.?](#)

[\(1\)](#)

[This Act may be called the Mines \(Amendment\) Act, 1983.](#)

[\(2\)](#)

[It shall come into force on such date \[31st May, 1984, vide notification No. S.O. 411\(E\), dated 31stMay, 1984, see Gazette of India, Extraordinary,](#)

[Part II ? , sec. 3\(ii\)\] as the Central Government may, by notification in the Official Gazette, appoint.](#)

[2.](#)

[Amendment of section 2.] Rep. by the Repealing and Amending Act, 1988 (19 of 1988), s. 2 and the First Schedule (w.e.f. 31-03-1988).

3.

[Amendment of section 3.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

4.

[Amendment of section 5.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

5.

[Amendment of section 7.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

6.

[Amendment of section 8.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

7.

[Insertion of new section 9A.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

8.

[Amendment of section 10.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

9.

[Amendment of section 11.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

10.

[Substitution of new sections for sections 12,13 and 14.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

11.

[Amendment of section 15.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

12.

[Amendment of section 16.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

13.

[Substitution of new sections for sections 17 and 18.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

14.

[Amendment of section 19.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

15.

[Amendment of section 22.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

16.

[Insertion of new section 22A.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

17.

[Amendment of section 23.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

18.

[Amendment of section 27.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

19.

[Amendment of section 33.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

20.

[Amendment of section 38.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

21.

[Amendment of section 39.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

22.

[Substitution of new section for section 40.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

23.

[Omission of sections for sections 41and 42.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

24.

[Substitution of new section for section 43.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

25.

[Omission of section 44.] Rep. by the Repealing and Amending Act, 1988 (19 of 1988), s. 2 and the First Schedule (w.e.f. 31-03-1988).

26.

[Substitution of new section for section 45.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).

27.
[Amendment of section 48.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
28.
[Amendment of section 49.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
29.
[Amendment of section 52.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
30.
[Amendment of section 57.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
31.
[Amendment of section 58.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
32.
[Amendment of section 59.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
33.
[Amendment of section 60.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
34.
[Amendment of section 61.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
35.
[Insertion of new section 61A.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
36.
[Amendment of section 65.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
37.
[Substitution of new section for section 68.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
38.
[Amendment of section 72B.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
39.
[Amendment of section 72C.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
40.
[Amendment of section 75.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
41.
[Amendment of section 76.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
42.
[Amendment of section 79.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
43.
[Amendment of section 80.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
44.
[Omission of section 80A.] Rep. by the Repealing and Amending Act, 1988 (19 of 1988), s. 2 and the First Schedule (w.e.f. 31-03-1988).
45.
[Amendment of section 81.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
46.
[Amendment of section 83.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
47.
[Amendment of section 84.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
48.
[Insertion of new sections 85B and 85C.] Rep. by s.2 and the First Schedule, *ibid.* (w.e.f. 31-03-1988).
49.
Transitory provision.?(1)As from the date of constitution of the Committee under sub-section (1) of section 12 of the principal Act as amended by this Act?
(i)
any Mining Board constituted under section 12 of the principal Act and functioning as such on the aforesaid date shall

stand dissolved;

(ii)

the Chairman and members of any such Board, who on the aforesaid date are members of that Mining Board shall cease to hold office as such;

(iii)

all proceedings pending on the aforesaid date in any Mining Board shall stand transferred to the said Committee which shall deal with them as if they had been pending therein.

(2)

Anything done or any action taken before the aforesaid date by any Mining Board shall, so far as it is not inconsistent with any of the provisions of the principal Act as amended by this Act, be as valid and effective as if it had been done or taken by the Committee.

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